

Constitutional Democracy

- It is possible to indicate two salient facets of relationship:
 1. The first facet in the relationship of constitutionalism and democracy is **the tension that exists between the requirements of the two concepts.**
 - Democracy, premised on the principle of popular sovereignty requires primarily that the will of the majority be given effect. Democracy, unless qualified by other values and considerations gives primacy to the popular will or the preference of the majority as expressed through the democratic process. The validity of a decision or an act from the perspective of democratic theory is the support that a decision or measure enjoys among the majority of those who belong to the relevant political community.
 - However, from the perspective of constitutionalism the **validity of any decision, act, practice or measure is conformity with constitutional rules. Constitutionalism requires that we consider any act or decision as void and invalid if the act or decision is found to be in violation of constitutional rules.** Constitutionalism, premised upon the supremacy of the constitution, would require that even decisions that are backed by a democratic majority be rendered void if they are found to be in violation of constitutional norms. Constitutionalism would justify blocking the preference of the majority of citizens that has been expressed through the democratic process **if the preference or desire of the majority violates the constitution.** Constitutionalism **subjects the democratically expressed will of the majority to constitutional limits.** It is only when and if the democratic majority enacts its will in a way that meets constitutional strictures that constitutionalism **accepts those enactments and decisions as being valid.** Therefore, it will be fair to say that at times, constitutionalism and democracy could be in tension with each other.
 2. However, at the same time, it should not also be forgotten that

constitutionalism and democracy reinforce each other. This is so because sustaining a democratic system requires guaranteeing certain rights and freedoms. Democracy cannot exist and function if there is no scheme to secure some fundamental civil and political rights. Constitutionalism meets this need **by securing the rights and freedoms necessary for the operation of a democratic system.** By limiting the ability of those in power to permanently entrench themselves in power and subvert the democratic order, **constitutionalism provides the mechanism for minimizing and preventing abuse of power.** Likewise, democracy could help maintain constitutionalism **by giving citizens an opportunity to protect the constitutional order through the democratic process.** This happens when the voters vote out of office and punish officials who are deemed to have violated constitutional rules and norms. **Such process of political constitutionalism requires an engaged citizenry with a great deal of reverence and attachment to the constitution.**

- Constitutional democracy takes into account the tension as well as the symbiotic relationship between constitutionalism and democracy. Hence, **constitutional democracy tries to provide a synthesis of constitutionalism and democracy.** Constitutional democracy reconciles the demands of constitutionalism and democracy by giving effect to the principle of popular sovereignty within the framework and bounds of a constitution. **The general approach of constitutional democracy is to provide safeguards for the freedom and liberties of individuals while at the same time giving the democratic majority the opportunity for governing the state.**
- The common adage of **majority rule and minority rights** could be considered the main ideal constitutional democracy tries to accomplish. In other words, constitutional democracy provides for a system in which **the will of the democratic majority will be given effect, as a rule and will be exceptionally rendered invalid to the extent the majority's will violates fundamental constitutional norms.**

- Although the strain between the two theories is always real and often serious, one must not exaggerate their differences. Both **accept the centrality of human dignity; they differ on how best to protect that value.** By limiting **legitimate governmental action**, constitutionalism tries to lower the stakes of politics, to restrict the risks to liberty and dignity of being a member of a political society. **Democratic theory attempts to limit those risks by protecting the right to share in governmental processes.** Constitutionalism's perils lie in **its propensity to paralyze government and so create a kind of oppression:** Governmental inaction, no less than action, generates costs and benefits. Democracy, on the other hand, tends to respond **to what elected officials perceive their constituents perceive to be societal problems.**
- To enjoy reasonably **effective but still limited government**, many countries have **adopted a mix of constitutionalism and democratic theory.** Such of these polities provides for a **wide measure of popular political participation and simultaneously restricts the people's government by a variety of institutional means.** like:
 - I.* Each tries to distinguish among powers to legislate, execute, and adjudicate, has some version of bicameralism, and includes a bill of rights.
 - II.* Australia, Canada, Germany, India, and the United States use **federalism to defuse power further;** and
 - III.* To **splinter this diffused power of majorities,** the United States employs staggered elections for its legislature and directly elects its president.
 - IV.* Each also authorizes politically independent judges to invalidate legislative and executive action they believe violates "the constitution."
- If these **institutional webs formed merely "parchment barriers,"** they would be important only to students of rhetoric. **To think that words can constrain power seems foolish. Yet a political chemistry may turn sheets of paper into hoops of steel** through:
 1. First, by **prescribing institutional structures and fracturing power among different offices** a document can push officials, as Madison

recognized, to link their own interests with those of their office **and jealously guard those interests against putative incursions by other officials**. Further, **by drawing vague divisions of authority**, a document can make it likely that no set of officials can do much that is politically important without arousing the territorial imperative of other officials. Thus, **a constitutional text can disperse power and protect liberty by putting ambition against ambition and power against power**.

2. **Culture** forms the second element in that political chemistry; A constitutional text that requires its officials to swear to support it can **forge a moral bond**. Much of the text may thus become part of the nation's **customs**. Yet, as they have tendency to impress some degree of respect for them, to establish the public opinion in their favor, and rouse the attention of the whole community, **it may be one means to control the majority from those acts to which they might otherwise be inclined**.
- In his famous work, *The Spirit of the Laws*, **Montesquieu identified three decisive elements in the shaping of a polity**:
 - a. The “spirit of the laws” or the kind of institutions established in a society,
 - b. The character of the rulers, and
 - c. The moral habits of the people
- Inspired by this approach to the problem of controlling the exercise of power, constitutionalism in the West has represented a rich and varied body of ideas and arguments about the **civic virtues and the institutional** conditions which need to be cultivated and sustained if a society is to be capable of living under a **liberal constitution**, that is to say, one under **which individuals are protected in the enjoyment of their rights and freedoms, the laws are applied equally and fairly, and the rulers are subject both to law and the judgment of those they represent**.
- The standards required of a liberal constitutional order are:
 - one under **which individuals are protected in the enjoyment of their rights and freedoms**,

- the laws are applied equally and fairly, and
- The rulers are subject both to law and the judgment of those they rep.

1) Constitutionalism in Africa

- It is necessary to discuss a problem of constitutionalism closer at home. One can boldly assert that a practical example of how a constitutional text becomes a sham document or irrelevant in the day to day business of the government in power would be found in Africa. Today, although some African countries (e.g. post-Apartheid South Africa, Ghana, and Botswana) are trying to break away from this sad situation, most still find them entangled in it. It is actually difficult as citizens of this continent to understand why power elites become so selfish and self-serving. There should be reasons for these failures to be explained away which we should try all the time, until we get to see that the **incumbent government leaves office peacefully when defeated by the ballot, not bullet!**
- A number of perspectives have contributed to this distressing lack of interest in African constitutions. **The first is primarily ideological and argues that the primary function of a constitution is to limit governmental authority and to regulate political processes in the state.** This view, whose origin lies in the liberal democratic tradition, forms the backdrop of many arguments among politicians and academics about the “correct” exercise of power in Africa. According to this view, there can be no “**constitutional**” government unless:
 - **Mechanisms exist within the constitution for the supervision of these functions;**
 - **Such mechanisms must be erected on the doctrine of the separation of powers and the principle of limited government,**
 - **Both of which must conform to the theory that government itself ought, at all times, to conform to the rule of law.**
- **The paradox lies in the simultaneous existence of what appears as a clear commitment by African political elites to the idea of the constitution and**

an equally emphatic rejection of the classical or at any rate liberal democratic notion of constitutionalism. The paradox, however, is both sufficiently manifest and intriguing to merit an examination to explain the contemporary **patterns of constitutional development in Africa** (or lack of them).

I. Constitutions as Organized Power

- The analysis of the paradox begins with a simple but important assertion: all law, and constitutional law in particular, is concerned, not with abstract norms, but **with the creation, distribution, exercise, legitimation, effects, and reproduction of power** of the state. From this perspective, therefore, the very idea of law, hence of a constitution as a special body of law, entails commitment or **adherence to a theory of organized power**, as appears evident in the historical experience of power has become more predictable, and even legal- rational in **Weberian sense, merely records the complexity of the relationship between power and law in different contexts.**
- A useful model for the analysis of any constitution, therefore, is to regard it as a **“power map”** on which framers may delineate a wide range of concerns:
 - An application of the Hobbesian concept of “covenant” as in the American constitution;
 - A basic constitutive process, as in the Malawi constitution;
 - A code of conduct to which public behavior should conform, as in the Liberian or French constitutions;
 - A program of social, economic, and political transformations, as in the Ethiopian (1987) or Soviet constitutions;
 - An **authoritative affirmation** of the basis of social, moral, political, or cultural existence, including the ideals toward which the polity is expected to strive, as in the Libyan constitution.
- The **process of constitution making**, which involves, inter alia, **making choices as to which concerns should appear on that map cannot be regarded as a**

simple reproduction of some basic principles that particular societies may have found operational. It is, as D. Elazar has noted, an “**eminently political act.**” which must draw on **past experiences and future aspirations.** An analysis of the African constitutional paradox must start, therefore, with an examination of the political origins **of the idea of the constitution in the Continent.**

II. The Nature of the Paradox

- The precise form in which that paradox, **commitment to the idea of the constitution and rejection of the classical notation of constitutionalism,** has emerged over the last three decades requires a description. **The idea of and the necessity for a constitution appear fully established in the minds of state elites in Africa in at least two important senses.**

1. First, the constitution is **an act without which the polity can have no legitimate or sovereign existence;** it is of no small significance, for example, that the very first article of most African constitutions declare that each respective country is sovereign. In Africa, the idea that the constitution is “**a means to demonstrate the sovereignty of the state**” appears quite strong: in that sense, **the constitutive value of some form of a constitution remains preeminent.** It is notable that very few European and American constitutions make such declaration; **sovereignty is assumed as the basis of constitution making.**
2. Second, **the idea of the constitution is firmly established as the basic law of the state.** Since all African independence constitutions provide for some method of change, fundamental alteration, or even total abrogation, **the notion of a basic law in the African context entails no element of sanctity. What it does entail is minimum, and perhaps popular observance of the rules contained in the constitution.** The notion that a constitution is important as a basic law in the above sense underlies the amendments, the revisions, and the experimentation with non-Westminster models by civilian governments. This search for autochthony involves not only the rejection of external (specifically “western”)

institutions and constitutional “devices,” but, more emphatically, the abandonment of the classical notion that the purposes of constitutions are to limit and control state power, not to facilitate it. A purely **instrumental view of the purposes of a constitution** in classical theory is to control and supervise constitutionality.

III. The Origins of the Paradox

- The question to ask is how did African states get into this quandary? It is my argument that the answer to that question requires a careful scrutiny of **Africa’s immediate past history**; in particular, and appreciation of a number of historical legacies.
 1. The first legacy is **the nature of legal** (as distinct from constitutional) **order** that many of these states inherited at independence and perpetuated after it. **Two characteristics dominated that colonial power and administration.** The more visible was its **labyrinth bureaucracy; the other was its coercive orientation.** Indeed, little distinction was normally drawn between the **administration of those areas of public policy associated with state coercion**, such as the criminal justice system or “public” order, and those that would **normally be reserved to the domain of private choice**, such as decision making on a subsistence farm; in both areas, **control and coercion, not management and persuasion**, were the hallmarks of the colonial legal order.
 2. The second legacy, developed fairly deliberately **in the terminal phase of colonialism**, was a highly **fragmented political culture, which sought to institutionalize conflicts and to strengthen centrifugal forces rather than to nurture and cement national unity.** Those **conflicts and forces**, generally organized around ancient claims, accrued rights, future demands, or matters that were peculiarly sensitive to race, religion, economy, and even geography were essentially divisive in character. In consequence, political

parties entered the **constitutional process as purveyors of irredentist ideologies, not as vehicles for the enhancement of such constitutional values as electoral sovereignty, majoritarian rule, or popular power. Fragmentation** was an established style of colonial administration. Known in the British sphere as “**divide and rule**”, in the postcolonial state it enhanced the power of the bureaucracy and gave it **complete dominance over public affairs**.

- What is often ignored is that, as in other spheres of public life, independence **expanded the role of the state**. Indeed, colonial relations of production and, in particular, the processes of expropriation and expatriation of surplus value from the colonies to metropolitan centers could have been secured only with heavy reliance on **state power exerted through the civil service bureaucracy**; the colonial economy was the “**managed economy**” **par excellence**. The effectiveness with which this strategy worked to “develop” the expatriate sector of the economy at the expense of its indigenous counterpart was clearly understood and even admired by the elites who took over at independence.

IV. The Nature of the Constitutional State and Power Realities

- The origin of the paradox also lies in the nature of the **state as “constituted” by the independence constitution**, which was fundamentally different from anything the colonialists themselves had devised. This was particularly obvious in English-speaking Africa, **where the constituted state was based on a remarkable distrust of centralized power**. That distrust was not founded on **any clear philosophy** such as, for instance, **the Hobbesian principle of limited government**; it was based almost entirely on the need to **exclude the state (as a centralized entity) from functions it had exercised before independence**.
- **Two aspects of the constituted state were particularly disturbing.**
 1. The first was the distribution of power in these constitutions;
 2. The second was the clear tension between that distribution and the rest of

the legal order. In respect to the first, **instead of the highly centralized power structure** that the colonial authorities had operated for more than half a century, the constituted state was **erected on a fundamentally flawed and fragmented distribution of power**.

- In the case of English-speaking Africa, that “**power map**” was based on a **severely modified version of the Westminster model**, complete with bicameral legislatures, separation of powers, judicial review of legislative and executive action, and a Bill of Rights distilled from the Magna Charta. In the case of French-speaking Africa, that map was based on the principle of **constitutional tripartism** as developed in the eighteenth century by Montesquieu and incorporated the provisions of the French Revolution of the Rights of Man and the Citizen of 1789.
- What was disturbing about the **power maps** described above was not that they were not “**democratic**”: in the western liberal sense they were. It was:
 - a. First, **the rationale for them that was the problem**. Whereas institutions such as federalism (Nigeria and Uganda), regionalism (Kenya), constitutional monarchy (Swaziland and Lesotho), chieftaincy (Zambia and Zimbabwe), and of course Bills of Rights have been used throughout history in appropriate contexts as **the primary media for the socialization of politics and power; no such value-specific function was the reason for their presence in independence constitutions**. For at least a decade after independence, these institutions essentially were **operated as mechanisms for the entrenchment of interests that had accrued by reason of the exploitative nature of the colonial process itself**. Having seen the efficiency with which control of state institutions had enabled the **colonial elite to convert the “national” economy into some kind of private estate**, the African elites regarded as **sabotage any suggestion** that there should be any “withering away” of state power in the domain of public (including economic affairs). For some of these elites, **control of the instrumentalities of state power was the key to**

development in the postcolonial state.

- b. Another disturbing aspect of the new constitutions was their **relation to the rest of the legal order**. As the basic constitutive act provided for the continuance of the colonial legal order as the residual law of the independent state, it was necessary to ensure that a mechanism was available for the resolution of **conflicts between the constitutional order and the rest of the legal order**. Invariably the first or second Article of the Independence Constitution declared the former the supreme law of the land and stated that “if any other law is inconsistent with [the] constitution, that other law shall, to the extent of inconsistency, be void,” The intriguing thing is that it **was the rest of the legal order, not the constitutional order, that offered African elites real power and the bureaucratic machinery with which to exercise it effectively**. In these circumstances it was always tempting to “**opt out**” of the **constitutional order**, the more effectively to manipulate the legal order whenever exigencies demanded it. Indeed, the constitutional order often appeared precariously perched on the legal order and the actual power structure, **without the creative and rationalizing normativity that Kelsenian positivists would have expected**. The potential for subverting the constitutional order through “**legitimate**” **exercise of bureaucratic power was present, ab initio, and almost limitless**.

V. The Development of the Paradox

- The actual process of “**subverting**” the **constitutional order in the sense suggested above took a number of forms**.
 - a. The most notorious was the **coup d’etat** that did not merely involve “opting” out of the basic law, but often its total abrogation.
 - b. Another form was a **cavalier disregard of constitutional niceties and processes**: the postponement of election results (Lesotho 1970), the declaration of no contest against certain election candidates (Zaire 1983), etc.

- c. The more interesting for our analysis was the move by state elites in a number of African countries to **politicize the constitution, initially by declaring it a liability**, and subsequently **by converting it into an instrument of political warfare**.

VI. The Constitution as a Liability

- The argument that the independence constitutional order was the state's most **serious liability** was carried to **the public in the rhetoric of the need for rapid economic development**. It was argued that a **fragmented power** structure would pose severe drawbacks to central planning, financial coordination and the formulation of policies on important matters such as health, education, and agriculture. It was also argued that the constitutional order sought to frustrate the goals of equity and faster delivery of services which the fact of independence, per se, was exposed to facilitate; by focusing mainly on the **loci of power**, it **had failed to resolve the important ideological issue of how to locate people's expectations and aspirations within its compass and permitted the importation of undesirable political practices alien to and incompatible with the African way of life**.

VII. The Constitution as a Political Instrument

- With a tidy landscape before them, **state elites** then proceeded to **insert new devices whose purpose was to recentralize power** as it had been under colonial rule. **Four main devices were used**;
 - I. The first was the extension of appointive and dismissal authority of the chief executive to all offices in the public service: civil, military, and "constitutional," such as those of judges and attorneys-general;
 - II. The second was the subjection of political recruitment at all levels (local, municipal, and parliamentary) to strict party sponsorship, the more effectively to monitor commitment to regime values.
 - III. The third device was the expansion of the coercive powers of the state by allowing extensive derogation from Bills of Rights wherever these were justiciable. This expansion was usually accomplished by

the **removal (or weakening) of parliamentary** supervision of emergency powers, and then by so **subjective a redefinition** of the conditions under which those powers could be invoked that any meaningful inquiry into the bona fides of any particular action was excluded.

IV. The fourth, and perhaps most interesting device, was to ensure that **the constitutional order conformed to the inherited legal order**; this device was often preferred whenever conflicts arose between the provisions of the constitution and those of specific legislation.

- As these and other devices found their places within the “constitutional” framework, so did the view that the constitutional arena, if properly controlled by the state elite, **offered a more efficient and effective environment for the resolution of political conflicts than even the party and certainly the electorate at large**. Indeed, by translating a political option or decision into a constitutional device or norm, state elites gained the added advantage of passing on the problem of enforcement or supervision ultimately to the judicial arm of government. A run to amend the constitution to deal with a political crisis became increasingly attractive as a method of reestablishing equilibrium within the body politic.
- The **constitutional order became not an arbiter in the power process but a crucial element in political warfare**, and instrument of and from the appropriation of power. The Constitution lost most of its claim to being the basic law of the land, **the arbiter in the power process**. State elites then revised the domain of administrative law so as to reserve **to themselves full and unfettered discretion over public affairs**; this was done, inter alia, by strengthening all aspects of public order law: security, meetings, police powers, processions and marches, aspects of licensing.

VIII. Reconstituted States

- **Three aspects** of the reconstitutions of most African states stand out as the

clearest evidence of that result.

- a) The first is the emergence and **predominance of a form of imperial presidentialism,**
- b) The second is a perceptible **shrinkage of the political arena** and
- c) The third is the **preeminence of discretion as the basis of “constitutional” power.**

A. The Rise of the Imperial Presidency

- The **fusion of executive power in a single individual** was perhaps inevitable in the historical process of **redesigning** the state in Africa. The fact that state elites chose to concentrate almost **exclusively on the issue of power, per se, has produced a new style and mode of leadership unprecedented in contemporary history.**
- The African presidents do not claim any divine right to rule, do not demand **obsequiousness** from the public at large, and are, at least in point of theory, constitutionally subject **to popular accreditation.** However, the **indices of imperium, the exclusive constitutional right to direct the affairs of state,** are quite clear.
 - i. The first of these is the **supremacy of the office of the President over all organs of government.** Although supremacy of the presidency over the legislature is usually indirect (the latter is not constituted by the former), **its effectiveness is exercised through the (dominant) political party.**
 - ii. The second index is the **immunity of the President from the legal process, civil and criminal, as long as he remains in office.** There are two consequences of this immunity. **The purpose is the protection of the dignity of the office rather than of the holder per se.**
 - iii. The third index of imperium is **the indefinite eligibility of a**

President for reelection; the reasons for it are several.

1. The first has to do with the mystique and sanctity surrounding the public image of the founder president; although such figures are now few and far between, this attitude seems to have passed on to second or even third generation civilian and military leaders.
2. The 2nd reason inheres in the argument that political and economic stability requires continuity in leadership at the top.

The fourth index of imperium is the high degree of **paranoia that tends to surround the exercise of executive power in Africa**, a special characteristic of military regimes, but not limited to them.

B. The Shrinking Political Arena

- The arena of **Politics** in any country ought, at least in theory, to **be open to any citizen**, especially if qualified, under the law, to vote. The mechanisms for participation in that arena may vary, but it is generally accepted in all known political systems that the most important is the **political party**. The argument is that **only through political parties can citizens** effectively communicate their demands, articulate their interests, and recruit persons qualified for elite roles including that of the chief executive, and, in general, be **mobilized into action or socialized**. In Africa, however, the **reconstitutions have recast the political parties into different kinds of instruments**; instead of expanding the arena of **politics in any or all of the above ways**, **political parties have been used to shrink it**.
- When as often happens in **one-party presidencies**, the **Chief Executive is also the de jure (or de facto) leader of the Party**, the political arena may **shrink even further**, skillful manipulation of the Party machinery can easily shift its entire mandate to the presidency. The **presidency**, rather than the Party of the citizenry at large, then **becomes the instrument to define the ideology to the state, to effect disciplinary control of party rank and file, to initiate or terminate public debate on important matters of national policy, and to recruit persons considered qualified for the**

performance of elite roles.

- In countries where the Party also controls other pressure groups such as women's organization, trade unions, or employers' associations, the shrinkage can be debilitating, **affiliation implying absorption.**
- This **power of the party excludes the citizenry at large from any meaningful control over the conduct of government**; with respect to the legislature, that shrinkage means that the electorate may be totally excluded from **the determination of parliamentary (or similar assembly) membership**. In the one-party presidencies, party membership has become essential for entry into and for maintenance of legislative roles at local and national levels; **these roles can be terminated through simple expulsion from the Party.**

C. Discretion as the Basis of Power

- The most liberal of jurists will concede that though the essence of constitutionalism may lie in the **limitation of arbitrary power**, "the **limiting of government . . . is not to be the weakening of it**. The problem is to maintain a proper balance between **power and law.**" **The rise of an imperial presidency and the shrinkage of the political arena** as a result of the entry of political parties in the constitutional process both point to the fact that in Africa, the issue **of power and law has been resolved, for the time at least, in favor of power**. Therefore, the legal basis of executive power (if this must be found) is to be sought in **the domain of administrative law**, which, it is worth recalling, was and remains a complex maze of highly **structured and coercive instruments**. What the reconstitution added to this complex was a **degree of discretion** that even courts sometimes found difficult to circumscribe. **Discretion as a basis of power is most visible in the ideology and operation of national or public security legislation.**
- The operative concept of national or public security was kept deliberately fuzzy. Such fuzziness is not only an African problem; what is peculiar to

Africa is the breadth of that concept in security laws. A typical definition is to be found in Kenya's Preservation of Public Security Act, which is so generous that one could say that the definition says no more than that "the preservation of public security means whatever the authority to invoke security powers says it is." Indeed, courts in some African countries have so decided. That breadth of definition is perhaps to be expected given the nature of the state in Africa. As J. Boli- Bennett points out, as it is the state **that enacts law and determines whether that law confers sufficient power for its purposes, one must expect the state to frame the law in a manner most favorable to its proclivities.** With respect to public security law, the more centralized and coercive the state is, the more loosely defined will be the operative concept itself.

- The most important point is that in an ever-increasing number of African countries, **security powers can be and often are exercised without recourse to a declaration of emergency.** All that is required in Kenya and Malawi, for example, is for the relevant authority to indicate by gazette notice that in his **own subjective judgment, sufficient grounds exist for the exercise of those powers.** As long as such a notice is in effect, a whole set of measures, ranging from indefinite detention without trial, restriction of movement including the imposition of curfews, press censorship, to suspension of any legislation (other than the Constitution and the enabling Act itself), may be taken; in practice, gazette notices are never withdrawn. **As a result, security powers are permanently available and exercisable. An important consequence of this is that the boundaries between security powers, stricto sensu, and ordinary criminal law are often blurred.**

IX. What Price Constitutionalism?

- The more important question is: What will it take to develop a tradition of constitutionalism in Africa? Although broad agreement exists on the essence of constitutionalism, **fidelity to the principle that the exercise of state**

power must seek to advance the ends of society, the attainment has not been an easy matter. The political history of many societies is replete with struggles for an **optimal balance between the few on whom constitutions confer power and the vast majority for whose benefit it is supposed to be exercised**. What is clear is that in no society has that balance been achieved through the **promulgation of a constitution**, per se. Nor has it **been achieved simply by cultivating the "correct" attitude toward a constitution**.

- More important reasons explain why that balance has not been achieved in Africa. The most important of these is:
 - a. The **socioeconomic condition of the continent itself**. That is a most dismal one. Some years ago, the Economic Commission for Africa (ECA) said, "the African region is most seriously affected by the burden of underdevelopment... mass poverty, unemployment, social unrest; disease, hunger and ignorance continue to plague the region.
 - b. The effect of these circumstances on the politics of the constitution is that **contemporary elites in Africa are preoccupied with the perfection of ways, means, and techniques of their own survival and the expansion of opportunities for private accumulation**. These conditions and this preoccupation are most **unhealthy for the growth of constitutionalism with any model**; indeed, it is doubtful whether **power**, at any level, can ever be fully socialized in **conditions of poverty and underdevelopment**.
- What then will it take to develop a tradition of constitutionalism in Africa? I am inclined to the view that Africa is destined to experience **struggles and disappointments similar to those through which the older political systems went before viable mechanisms for the control, supervision, and accountability of power can be developed and internalized**. That may be a severe position to take; but what it says is that history cannot simply be learned, it may have to be lived as well.

- **Constitutionalism is the end product of social, economic, cultural, and political progress; it can become a tradition only if it forms part of the shared history of a people.**

2) **Mahmood Mamdani**, “Social Movements and Constitutionalism: The African Context

- Are human rights a western invention? Is the very conception and accompanying notion of constitutionalism, a legal process that sets definite limits on the exercise of political power, specifically inventions of the seventeenth-century enlightenment philosophers, and ideological products of the French and the American revolutions? And thus, is any talk of human rights in Africa tantamount to a mechanical import of a western bourgeois ideological conception without the struggles and the relations that gave rise to it in the first place? **Without the experience of sickness, there can be no idea of health. And without the fact of oppression, there can be no practice of resistance and no notion of rights.** “Nothing sensible or pertinent can be said about human rights,” writes the philosopher Paulin Hountondji: if one ignores this daily, universal fact of revolt. Only those aware of rights infringed and dignity flouted can be indignant. Only by remaining silent about this commonly experienced fact, or by considerably reducing its implications, is it possible to make human rights an invention of Western culture.
 - **With oppression**, and Europe had no monopoly over this phenomenon in history, **there must come into being a conception of rights.** This is why it is difficult to accept the idea, even in the case of Europe itself that no notion of human rights existed prior to seventeenth-century enlightenment philosophy.
- a. Some remarks on the Western Tradition and Contemporary Africa
- De Tocqueville remarked on the **difference between the American and the French democratic tradition, underlining the contrast between democracy as a stabilizing and conservative force in the United States,**

and as a revolutionary and destabilizing force in France. What de Tocqueville termed “democracy in America,” however, was the core of **republican thought and practice in the United States**, a body of thought that in fact evolved in **contradistinction to popular conceptions of democratic practice.**

- A central concern of the mainstay of that **republican thought was in fact to place legal limits on democratic political practice, in the process separating law from politics, seeking to keep political questions out of the courts and legal questions out of politics.** The point was to set parameters on *popular sovereignty*, and thus on the right of the majority to transform society, by the *rule of law*, which formulated the **inviolable rights of the minority in reference to that majority**, or of the individual in relation to **the political (state) power.** The dominant conception of the rule of law forbade the majority from appropriating the property of the minority. **This contradiction is expressed in the language of the rights**, between *natural rights* to transform society and *vested rights* that remain **judicially enforceable**, or, in the language of the law, as a contradiction between the **public law model based on the rights of the citizen** and the **private law model based on the rights of property.**
- Whereas in **Western Europe the rule of law was seen as a check on an arbitrary and capricious royal power**, in the U.S. tradition it emerged as **a limitation on popular sovereignty.**
- The point is that the **historical routes to the rule of law and a concept of constitutionalism are several and contradictory.** The terrain of constitutionalism has never been and cannot now **be an uncontested one.** Surely, a **conception of the rule of law** that arose in response to **arbitrary state power** was potentially part of the agenda of movements anchored in popular social strata. On the other hand, **an alternate concept set the rule as a limit on the exercise of popular sovereignty**, particularly as it affected the right of property. It is in this sense that I hope to show that the

discourse on human rights and constitutionalism in contemporary Africa should not be seen as a settled issue.

b. Africa and the Politics of Human Rights

- In relation to those countries where the Soviet Union was beginning to be the dominant military and political influence, such as Ethiopia, the emphasis on human rights made for a sharp and relevant ideological critique of Soviet practice. It highlighted the fact that Soviet talk of social rights was not an attempt at building on and thus enriching the minimal foundation of political rights, but was in fact a demagogic attempt to displace any discussion of political rights. For the fact was that Marxism on the African continent was no longer simply **an ideology of struggle; in the Soviet version, it was also now a state ideology**. As such, **Marxism was no longer formulated around a conception of class struggle, but around “the primacy of productive forces,” in the process redefining socialism as the development of productive forces minus the class struggle**.
- In the Soviet conception of Africa’s future, there was room neither for democracy nor for human rights; and this much the new U.S. offensive on human rights highlighted effectively. **The human rights offensive also had an important *political* objective**, of particular significance in the southern African situation. **In a context where the balance of forces was rapidly changing, it was an attempt to reorganize the ruling bloc from above, to prune its worst elements and to bring into its fold the most palatable sectors from the popular movement**. The point was to effect a transition from above that would reform but **not replace the existing power bloc, while at the same time paralyze and cut off embryonic revolutionary initiatives**.
- Therefore, the strategy was adopted in, for example, Zimbabwe and Sudan to preempt revolutionary developments, although such political initiatives were not confined to the African continent. **Emphasis on a democratic**

transition from above has characterized the U.S. response to a number of potentially revolutionary situations; the Philippines and South Korea in Asia, Haiti in the Caribbean, and above all, of course, in South Africa. Does this mean that the human rights movement is in reality an imperialist Trojan Horse? No! It is in reality a contested terrain. For the fact is **that the political situation on the African continent is extremely uneven, exhibiting sharp contrasts, potentially revolutionary situations, and situations where repression threatens stability.** The significance of reform movements cannot be the same in both contexts. **In the former, reform may be the cutting edge of a political program designed to undermine revolutionary initiatives; in the latter, the struggle for reform could just as easily be the opening phase of a struggle against the forces of repression.**

c. The State and the Peasantry

- The colonial state in Africa was sharply divided **between the colonizers and the colonized;** and, except in settler-dominated Africa, **between urban and rural areas.** The state that confronted the European population **in the towns and cities was organized along liberal bourgeois lines.** It was structured with a clear demarcation among the **administrative, the judicial, the legislative, and the executive, respecting the principle of division and balance of powers, so crucial to the practice of rule of law.** In the no-settler colonies that existed in most of east and west Africa, this liberal colonial regime was gradually extended through a series of reforms, which were responses to a series of struggles, to immigrant minorities (of Indian and Lebanese origin mainly), and then to native middle classes.
- There was, however, **nothing liberal or bourgeois about the organization of state authority in the rural areas.** The state power that **originally confronted the entire “native” population, and later, the mass of the peasantry, was organized along pre-bourgeois lines.**

Power was fused in the person of one individual; the chief. It is the chief who enumerated the property of the peasant, assessed the tax, collected it, heard his appeal if the peasant felt he had been unfairly assessed, arrested him in case of failure to pay tax, jailed him on arrest, and released him on expiry of the term of arrest. Although presented **ideologically as a continuation of “traditional” pre-colonial authority on the continent**, an examination of the division between clan and administrative authority in most pre-colonial African state systems reveals this claim to be hollow.

- **The personalized and fused political authority was not an overnight, or just a detail of the colonial system.** It was in fact the heart of it, since it was the seat of a series of extra economic relationships through which the peasantry was systematically exploited. The I.M.F. notwithstanding, the exploitation of the peasant occurred only in part through market relationships. The rest (which could often account for a larger share of the surplus appropriated from the peasantry), was the result of a galaxy of relationships that required an element of force to be implemented and to be reproduced: **forced crops, forced sales, forced contributions, forced land enclosures, and forced labor.**
- In many parts of Africa, including the so-called radical states of Tanzania, Ethiopia, and Mozambique, one could argue that this state of affairs has deteriorated. **Under the guise of ideological purification and the superiority of moral incentives**, what has occurred is an intensification of the extra economic exploitation of the peasantry; **state authority is now redefined as state-party authority, and its on-the-scene representative is called a “cadre,” instead of “chief.”** But then, in context and redefined as a strategy for economic development, the result could be none other.
- The same **dual organization of state authority—one rural, confronting the peasantry; the other urban, dealing with the rest of society**—could be seen in the organization of the ministerial structure in the capital city.

The service ministers of health, education, transportation, etc., usually took responsibility for services in the urban areas only. **The point to note is that state organization in independent Africa is a structural continuation from the colonial period.**

- In the present context of Africa, a general movement toward constitutionalism and the rule of law that calls for a reorganization of state structures so as to institutionalize the principle of the division and check of powers must be welcome as a step toward democratization. But it cannot be assumed that a legal system operated by legal professionals will ensure that the rights of the peasantry are protected, since this will depend on the balance of political forces and the nature of the process that leads to this reform. In other words, the actual institutional guarantee for the defense of rights will depend on how the question of power is settled.

d. The State and the Middle and the Working Classes

- A dominant characteristic of this struggle [in Africa] is a distinction between rural and urban protest. Thus, from the Ivory Coast and Senegal on the west coast to Kenya and Zambia in eastern Africa, what has come to be known as the “democratic movement” is primarily an urban affair. It is a movement whose thrust is shaped primarily by the activity of the middle and working classes.
- The human rights activity of these classes is specific, shaped in each instance by concrete historical experience. Both the nature of its demands and its varying perspectives elude easy generalization. I shall try and underline this point by contrasting the rights activity of the middle and working classes in contemporary Uganda. In the 1980s, broad sectors of the middle classes rallied around the demand for free expression, concretely formulated as a call for press freedom. More than the right to form political parties, it was this right for a free press—for independent sources of public information and for a public forum for a public discussion of

public policies—that caught the **imagination and organized the energies of broad sectors of the middle class in their struggle for rights.**

- Why was there not a similar **enthusiasm for the defense of the right of political organization?** Because large sectors in society, and not only in the middle classes, have come to understand **politics as a profession, not as a popular political activity; as a profession, it is seen as a way of making one's living and of looking for an opportunity to enrich oneself when possible. Political parties are thus seen as associations of professionals called politicians, which make a clear distinction between their own corporate interest and that of their members on the one hand, and the interest of their constituencies on the other.** In normal times they excel in **building ever larger constituencies through demagogic appeals to high principles or broadly held prejudices;** when it comes, however, to situation of **confrontation between state authority and their constituencies, these politicians are naturally loath to risk their future careers in the name of some vague and higher general principle.** Such, in brief, is the cynicism with which broad sectors of the middle class view **the standard careerism and the occasional opportunism of politicians of different stripes.** No wonder that a demand for the right of political party activity has a far **narrower audience within middle-class circles than does any call for press freedom.**
- What is the historical experience of both the press and political parties that gave rise to such a judgment? An active press came into being in Uganda after the fall of the Main regime in 1979, when a loose coalition of diverse parties and groups, called the Uganda National Liberation Front (UNLF), ruled the country. At the time, **effective power lay in the hands of the Tanzanian army,** which had defeated the Main forces in an intensive war; the government machinery was run by different factions of small exile groups, each group turning to the press and to recruiting armed militias in preparation for the next round of battle. Thus, **the press freedom of the**

UNLF days was a sign of the reality of a political vacuum, of a postponed confrontation, not a historical gain of any sector of society.

- Press freedom did become the stuff of political struggle in the coming period. As guerilla war raged in the countryside, the urban middle classes rallied around broad sectors of **the intelligentsia in a struggle for more information and more discussion**. This struggle developed through the press, through institutions of higher learning (including the university), and through the schools. For the urban population, **the opposition political parties could offer little by way of resistance beyond an occasional press conference**. But, newspapers, like *Weekly Topic* and *Munasi*, magazines like *Forward* and university-based forums like *Mawazo* became the fora of public criticism of the regime and a public discussion of the necessity for an alternative to dictatorship. Following the Lutwa coup of July 1985, the military regime imposed a military censor on the press, and important sections of the press, led by *Weekly Topic*, openly and publicly defied the censor, becoming the spearhead of urban middle-class resistance to the military dictatorship. With the victory of the guerilla struggle in 1986, it was this press that became the first effective barrier in the path of hegemonic tendencies within the ranks of the guerilla movement. For the fact was that press freedom was not the gift of government from above; it had in fact been won through struggle from below. In the late 1980s, Uganda and the Sudan had the freest press in eastern Africa.
- It is worth noting that the **tendency for regimes in Africa to want to monopolize organizational initiative**, and the **corresponding denial of the right of self-organization to social groups**, has usually been expressed in the **language of radical politics, as a call for “national unity” against “imperialism” externally and “sectarianism” internally**. However, the extent to which this tendency has prevailed has depended not just on the **aspirations of ruling power but also on the organizational strength of popular classes in society**.

- Contrast, for example, the experiences of Libya and Egypt. In both countries, a coup against a foreign-backed quasi-medieval monarchy took on the dimensions of a national rejuvenation. The anti-imperialist credentials of both post-coup regimes combined with an **antidemocratic orientation that denied social groups independent self-organization**. Despite this similarity in the origin and orientation of the Nasser and the Qaddafi regimes, the results of the two coups were hardly the same. In Egypt organized sectors of the **middle and working classes stood for the right of self-organization and checked hegemonic tendencies within the military**; in Libya, hardly any effective check on the militarization of society existed.
- The capacity of a **victorious political movement to transform itself into a hegemonic force that denies all other sectors of society the right to organize autonomously**, can also be seen in Tanzania and Ethiopia. By contrast, we can see in Egypt, Uganda, and the Sudan the capacity of **important sectors of urban society (the middle and working classes) to stand for the right of self- organization**.
- Ironically, **the capacity of popular classes to defend their rights is often at its weakest** in countries where **the political (state) power has been reorganized as a result of a protracted armed struggle**. For the very fact of an armed struggle is evidence of both the limited development and the organizational weakness of sectors of the so-called “civil society.” A **successful armed struggle is more likely to exacerbate than to militate this contradiction**: for to be successful, it must bring together the best of the elements from various social sectors; yet on victory, the armed struggle reorganizes the state, and only then develops an agenda for social change. If this reorganization is combined with a perspective that sees in democratic demands nothing but a demand for “bourgeois” rights, nothing but fresh evidence of “counterrevolution” rearing its ugly head under new conditions, it is likely to leave popular sectors in

society even weaker than before. Mozambique ought to be a warning. There, the democratic phase of the national revolution was cut short, and the dynamiting groups dissolved when, through an act of sheer will, the front for the Liberation of Mozambique (FRELIMO) passed a conference declaration “transforming” the “national front” into a “proletarian party,” and the **state power into a “proletarian dictatorship.**

Questions and Discussion

1. Explain Mahmood Mamdani’s notions of “republican thoughts of democracy” and the popular version of democracy.
 2. How does the author respond to the question of whether human rights are a western idea, alien to the African culture or not?
 3. Discuss Mahmood Mamdani’s suggestions for reconsidering an approach to state-ism and constitutionalism in Africa. Are these workable or not ?
- In so far as a constitution is a collection of rules, establishing and regulating the system of government in a state, we can, as shown above, discern a **formal and substantive aspect of a constitution**. These are the *quit-essentials* of modern **constitutions**, to which may, of recently, be added *sustainable development* and *good governance* with their entire corollary. Herein above, **we have defined constitution as a collection of rules**. Here, the term “*Rule*” requires to be appreciated in terms of “*Institution of Law*” – institution, understood as an **idea of an undertaking, which persistently exists in the social environment**.
 - Hence *rule*, as an *Institution of Law*:
 1. are first **precepts attaching** definite consequences to definite *factual situations*.
 2. Secondly, there **are principles**, which are authoritative points of *departure for legal reasoning in cases not covered by rules*.

3. *Thirdly, there are **conceptions**, which are categories to which types or classes of transactions and situations can be referred and on the basis of which a set of rules, principles or standards becomes applicable.*
 4. *Fourthly, there are **doctrines**, which are the union of rules, principles and conception with regard to particular situations or types of cases in logically interdependent schemes so that reasoning may proceed on the basis of the basic scheme and its logical implications.*
 5. *Finally, there are **standards** prescribing the limits of permeable conducts, which are to be applied according to the circumstances of each case,”*
- For all practical reasons “rule” means standard, on the basis of which conduct, transaction (relations), situations are judged. The *realness* of principles, concepts and doctrines is self-evident. What is not clear is the function of principles, concepts and doctrines. **In short, their primary pursuits is the provision of rationale for rules or standards.** As the *rule quality* of every provision or even improvisers such as savings and excepting clauses, of any provision’s law, let alone those of a constitution is a legal proposition of rule (standard) which again is self-evident.
 - If these propositions are found acceptable, the following exposition is an attempt to identify and explain some pertinent provisions of the 1995 FDRE constitution, behind which basic concepts principles and doctrines of modern constitution have been embodied.
 - First of all, we have said earlier that constitutionalism presupposes the existence of a higher law; not in a sense of “*Grund norm*” as Kelsen has envisaged, but constitution, written or unwritten-constitution, as “*a collection of rules (standards), establish and regulate*” the system of government in a state.

1. Rule of Law

- The same have been designated as the **substantive, the formal aspects of constitution**. Of the formal/elements aspects of constitutive aspects, *rule of law* stand out as the most comprehensive and vital doctrine, principle and/or concept (hereinafter referred to as principle) of modern constitutions.
- In the sense of Lon Fuller's view of the "**inner morality**" of law, ***Rule of Law*** is not treated in its general sense of ***government under law***, but in much more specific, comprehensive manner. According to Fuller yet "... a comparison can be made ***between the internal morality of law and the natural law of carpentry***; which the carpenter has to follow whether his aim is to build a hideout for thieves or an orphanage. The ***internal morality*** is to be distinguished from the external morality or the substantive aims or values that particular legal rules (standards) seek to promote. In other world (he] developed a conception of the Rule of Law, ***not by appealing to moral values drawn from the external morality***, (which will, of course, vary with different legal rules and systems and from natural school perspective to other schools of jurisprudence), but by ***spelling out the values that underlie the concept of law itself.***"
- These **values** are characterized as **the *eight desiderata***. These identified eight elements of law, recognized as necessary for a society aspiring to institute the *Rule of law* state as follows:-
 1. Laws must exist and those laws should be able to win obedience.
 2. Laws must be published.
 3. Laws must be prospective in nature so that the effect of the law may only take place after the law has been passed. Laws should be written with reasonable clarity to avoid unfair enforcement.
 4. Law must avoid contradictions. (intelligibility)
 5. Law must not command the impossible. (Non self-contradictoriness)
 6. Law must be general.

7. Laws must stay constant through time to allow the **formalization of rules**; however, law also must allow for timely revision when the underlying and political circumstances have changed.

8. Official action should be consistent with the declared rule.
(Congruency)

- Standing alone, these eight elements may seem clear and understandable. But they are actually difficult to implement in the real world because governments are often compelled to prioritize one goal over another to **resolve conflicts in a way that reflects society's political choice**. For example, making too many laws that are too detailed and specific may make the legal system too rigid. Inflexibility could cause the particular case. Additionally, instead of only applying prospectively, few laws, under limited circumstances are meant to apply retroactively, or to past conduct, because they were passed with the specific intent of correcting the conduct in question. **Fuller recognized these conflicts and suggested that societies should prepare to balance the different objectives listed above.**
- *Fuller's Criteria* is helpful in understanding *rule of law*, because it outlines the types of rules; of formal constraints that societies should develop in order to **approach legal problems in a way that minimizes the abuse of the legal process and political power.**
- *Rule of law*, however, extends beyond mere regulation and is also shaped by the so-called ***institutional constraints on government implied in Fuller's elements***. One such ***institutional constraint*** is the existence of an **independent judiciary**; another is **developing ways of promoting transparent governance**. *Informal constraints*, such as **local culture or traditions that may encourage citizens to organize their behavior around the law**, also help constrain the government, prompt liberty and, therefore, define the rule of law.

- Although still seemingly vague, *rule of law* may be most concretely defined as a theory of **governance relying upon a series of law**, which may be most concretely designed to:-

a) **Encourage order** and to **prevent arbitrary and unreasonable exercise of government power**.

b) Multilateral institutions such as the World Bank and many policymakers throughout the world believe that the *rule promotes economic development*. Modern economic development often comes with the introduction of a *market economy*; or, an economy based on private enterprise that does not rely on *government-planned* production. **Max Weber**, a famous sociologist and economist, has commented that the **capitalistic order**, upon which a market economy is based, is organized upon a **rationale of law-bound state**. Market economy brings buyers and sellers to the market for complex transaction from many, different parts of the world and on international scale. **Law is important to the market economy because it is the common basis on which parties can make agreements**; it provides parties with confidence that disputes can be resolved efficiently and fairly. For this reason, the *predictability and order* that the rule of law promotes in substantive laws is viewed as the stabilizing force behind much economic developments. **Rule of law helps set the rule of the game in critical areas such as investment, property, and contract**.

c) Rule of law also serves as **an important assurance of social rights and government accountability**. Government restraint is especially critical for many transitioning economies where a previously planned economy is to be transformed into one that is market base. When the government is no longer the sole owner of land, capital, and labor, **rule of law guarantees that the crucial elements of the economy will be free from arbitrary government will**, adopt a hands-off

approach to investment and production, allowing those participating to fully exercise their rights in relations to land, labor and capital.

d) The very term *Rule of Law* suggests that **the law itself is the sovereign, or the ruler, in a society**. As an idea, the rule of law stands for the proposition that no person or particular branch of government may rise above rules made by selected political officials. These laws reflect the morals of a society, and in a Western Democracy they are supposed to be pre-established, formalized, neutral, and objective. Everyone is subject to their dictates in the same way. The rule of law, therefore, is **supposed to promote equality under the law**. Thus, *rule of law* should be clearly differentiated from *rule by law*; *i.e.* the latter does not necessarily mean that the law is legitimate for it might not satisfy most of the *desideratas*.

- The term ***legal transplantation*** describes the phenomena of importation of legal rules from other countries. Academic debates often center on the moral and practical implications and, by extension, the **imposition as rule by law**. Many Developing Countries, including Turkey, Ethiopia and Japan had incorporated a good number of laws of foreign essence since World War II, despite having a variety of legal traditions of their own. When developing countries such as these adapt laws from other countries, the rules borrowed may not fit the underlying tradition, culture, and social context. Thus, in legal transplantation, countries should **strive to adopt rather than simply adapt laws so as the newly introduced law fully complements and is reflective of their respective legal, economic, and social systems**.

2. Sustainable Development, Good Governance and Constitutional Order

- The essence of sustainable development has been described as a process of change in which the exploitation of resources, the direction of investment, the orientation of technological development and institutional change are all **in harmony and enhance both current**

and further potential to meet human needs and aspirations.

Sustainable development means in essence the human endeavor to meet the needs of the present without compromising the resources, opportunities of future generations to meet their own needs with due regard to essential needs of the present; without compromising the ability of the future generations to meet their own needs – with due regard to essential needs of the world's poor, consideration of existing social, organizational, environmental, technological, etc. limitations influencing the needs of present and future generations.

- **Sustainable development consists** of a chain of minor and major events which are supposed to characterize and direct a process of gradually merging developmental considerations and environmental concerns in the long term perspective of re-constituting the World Order to the effect that humankind in all its parts will be given a lasting opportunity to survive in justice and peace. This raises fundamental questions of the constitutional order and its development or evolution both on national and international levels.
- **Good governance** means qualification of constitutional order as being **conducive to sustainable development.**

a) Sustainable Development

- Bridging the glaring gap in terms of economic performance between the developed and the developing states, measured by whatever criteria, was considered to be an economic affair of transfer of financial and technical resources from North to South. Economic growth was identified with development.
- But, a key word introduced not long ago, namely NIEO (New International Economic Order), began to be institutionalized in UNCTAD since 1964 (U.N. Conference on Trade and Development).
- The NIEO process follows development strategy is applied from top-down, without questioning the stage of development and social structures of the

states concerned and its available capacities. Little or no attention at all was paid to the involvement of the non-state sector – the civil society and to the increasing relevance of the informal sector with its record of self-organization and spontaneous institution building. The NIEO process was largely governed by a development strategy following the modernization theory, in its western or eastern version. Development was understood as a linear process of replicating modernity; i.e. European statehood on a world wide scale.

- However, the belief in the simple export of European, N. American, history and experiences of modernization to the Third World appears today as one major cause for the failure of the development strategy pursued in the NIEO process. Top-down social and legal engineering, according to a preconceived blueprint of development, was not sufficient to allow for sustainable development, as it did not reach down to the development of the so-called hidden resources, hidden in the socio-political heritage and normative culture of the developing states themselves.
- Developing hidden resources means human centered development. It means developing locally available skills, in particular, in the sense of social, political and economic capacity building, including decentralization of government and strengthening local authorities and the so-called third dimension; bottom-up development of the informal sector. It embraces promoting the private sector and letting the informal and non-governmental sectors of the civil society to have their optimal social role in developing and sustaining a genuinely democratic system. It means developing favorable social and legal means of instituting good governance as an element of sustainable development to the sector.
- So, to achieve a sustainable development, a *bottom-up-approach involving the people at the grass-roots and the so-called hidden resources, support the top-down governmental and state-centered strategies*. The question is not either/or, but how to accommodate both within the legal structures of

constitutional orders. The transition from the concept of development, underlying the NIEO-process creates expectations in an all-embracing development strategy, addressing itself as much to governments as to people; at times depending on the support of both – national and, where relevant, international.

b) Constitutional Orders for Sustainable Development

- Constitutional Order should help address the State's Constitution and the existing social reality. The latter is especially relevant in respect to constitution and institution building in developmental context and should allow to capture and to understand better the evolutionary potential inherent in its socio-political sub-stratum.
- Sustainable development requires an interaction between government and its people; for that matter, it requires a sufficient degree of clarification and identification of the civic and interest group leaders and active promoters, service providers of the private and governmental civil services, representatives, the elite and the polity.
- Developing societies usually lack properly structured social organization just as they suffer from weak statehood. Under structured means that there is a gap of communication and interaction between government and people, due to, among other things, lack of sufficiently developed mediational organization i.e. a properly organized civil populace.
- As Ethiopia is and still will remain to be a country of traditional people, lack of such properly organized civil societies significantly hinders orderly and secure good governance. Thus, it seems there is a public concern on the issue of '*developing constitutional order*' – especially on the national level, but also on the international.
- In developing national constitutional order and promotion of good governance the issue of *participatory development* matters. So, entitlement of civil organization in the process of developing the *constitutional order* is much sought for. In case popular organizations or so-called intermediary

groups cannot claim a legal status under their national legal order, they might resort to seek other avenues to legitimize their claim. (Like, assistance under international law from other parts of the international community?)

- On the national level, the question seems to be whether there is any law that governs all others beyond the actual sovereignty of the country itself? Some might resort to question whether the *order* to be set admits participation, ensures legal pluralism and in the final stage, when it becomes practical, will be founded to a reasonable degree on the concepts of law.
- On the level of *international constitutional order* the problem constantly addressed is how to reduce, what is usually denounced as high transaction costs of law making and implementing them in newly emerging fields, demanding an immediate regulation. The need to overcome the rigidities inherent in an international legal order, the logic of which derives from the doctrine of state sovereignty, reciprocity and consent, is responded to by the increasing recourse to the so-called soft law in order to come to terms with newly emerging threats and developmental demands. New constellations and forms of the interaction between state, society and law, international and national, will need support also on the level of the international constitutional order, so as to allow for the optimal promotion of good governance through a well structured interaction between the governmental and the non state sector.
- A concept of law, embracing both national and international law, which derives its intrinsic information from the notion of sovereignty of states can hardly suffice in the face of the existing under structuredness of constitutional orders of the greater number of the states and in view of the fact that weak statehood still is a common feature of the international community. However, as long as the international constitutional orders of the greater number of the states and in view of the fact that weak statehood still is a common feature of the international community. However, as long

as the international constitutional order still is perceived in theory and practice in light of the doctrine of state sovereignty, reciprocity and consent, the international legal order and the potential for evolutionary legal order lacks the openness and the cotangential for evolutionary change, which is ever more needed in the face of increasing environmental threats and developmental domains. Therefore, the important question is how to re-conceive the relations between society, law and states so as to secure the interaction between national and international constitutional orders, necessary for apposite evolution in terms of sustainable development.

- At this stage strengthening the basis, legal and theoretical, for promoting the self-organization of peoples becomes topical in the larger context of the international legal structures and their evolution toward a higher state of social organization. An effective policy of sustainable development requires that good governance will be institutionalized in constitutional orders both on national and international levels.

c) Good Governance as an Element of Sustainable Development

- Governance means the management of the relations between government and its populace within a given constitutional order. Good governance is the opposite of poor or bad governance.
- Bad governance:
 - ❖ which reaches from denial of political and civil as well as economic, social and cultural rights,
 - ❖ administrative inefficiency and corruption,
 - ❖ to deficient legal protection and political repression, and
 - ❖ ultimately to mass violations of human rights and tyranny.
 - ❖ It entails waste of human power and natural resources;
 - ❖ it leads to environmental degradation and
 - ❖ prevents sustainable development.
- Good governance is called for to de-legitimize and to overcome governmental and administrative malpractices and non-democratic structures withstanding the

realization of sustainable development. The practical meaning of good governance will vary according to the socio-economic and political particularities and the concrete state of development of the constitutional order involved. As a matter of principle, it means promoting limited government through string thinning public accountability inter alia by way of promoting popular participation in development and resource management.

- In **substantive terms**, ensuring good governance requires that the working of the political system is made transparent, that the political leaders are held publicly accountable, that fairness and equality before the law prevail and that access to and distribution of assets, mainly land, are regulated in an equitable manner.
- In **operational terms** the realization of good governance requires that key sectors of society and the people participate, as much as possible in cooperation with the government, in shaping governance. Intermediary group's i.e. popular movements, non-governmental and community/ grass-roots based organizations often were and still are the most significant elements in promoting political freedoms and democracy as elements of sustainable development. Through popular participation the promotion of democracy will thus occur on the basis of the interaction among states, key sectors of society and people i.e. in a new partnership between government and people.
- The promotion of good governance as a process of democratization from bottom-up on the level of national constitutional orders can be frustrated or supported on the level of the international constitutional order, i.e. in the context of bilateral and multilateral development diplomacy, conducted now-a-days under the name of constructive policy dialogues between governments. However, it will need above all the support of the community of the non-governmental developmental organizations.
- The realization of good governance calls for action and raises questions both on the level of national and international constitutional orders.
- According to the Charter of Arusha, the realization of popular participation will take place on four levels:

1. the level of the people,
2. of governments,
3. of the international community and
 - of the NGOs, with the primordial objective of governments yielding space to the people. Promoting popular participation as a matter of promoting good governance implies in the first place limiting governmental power.

